

Analyse this

An online service that lets you paste EULAs and helps you identify phrases that should interest you. Head over to www.spywareguide.com/analyze/analyser.php

Alternate names

The EULA may often be referred to as the software license, user license, terms of service or terms of use (as in the case of online services)

FEATURE

LOOK BEFORE YOU CLICK

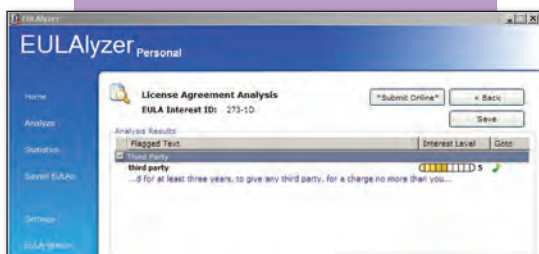
We help you understand the really fine print



Unless you were born yesterday you've probably signed up for an online service or installed software on your computer. While flying through endless "Next" clicks, there is usually a point where you need to switch an innocuous radio button to "Agree" before

EULALYZER

Even after giving you all this gyan, we're pretty sure hardly anyone reading this is ever going to go through a cumbersome and confusing tome



like a EULA. While it's true most of it is standard boilerplate nonsense, there are some bits you must go through. Fear not. Here's a little software that will help you weed out the legalese and zero in on the parts that are most relevant (and juicy). Find EULALYZER in the DVD and throw any tough nut EULA at it.

The app will break it down and give you a list of attention phrases with convenient "go to" links. There is even a submission facility to harness community knowledge on a particular EULA. We ran the EULA of a harmless open source software called DVD Flick though it, and it was still able to point out phrases like "Third Party" with an interest level rating of one to five for each phrase.

clicking through. This whether you know it or not is the dreaded EULA or End User License Agreement. Ideally, you're supposed to read this lengthy piece of legalese to know your rights as a user. And also to know if by clicking "Agree", you are inadvertently signing over your life savings to a con artist from Nigeria or giving rights to the software company to break into your sock drawer should they choose to. If you've never bothered to read an EULA before you should know that safety begins by being informed, of everything — especially the fine print.

Many EULAs now have clauses that prohibit you from benchmarking the software or engaging in any sort of comparison. Other stipulations state that users cannot publicly post criticism or derogatory remarks about the software. Back when the Windows 7 beta build came out, its EULA restricted users from revealing results of speed tests or benchmarking. Popular blogs then had to find alternate ways of comparing it with Vista and XP — some did not give exact timings (with units of measure) but gave information through visually represented bar graphs.

EULAs also contain important details about the impact on the user's privacy. These include things such as the kind of data that will be sent back to the developers and whether the data is personally identifiable. Facebook too came under the scanner for the draconian terms of its EULA (or Terms of Service in this case) several times. A long time ago, Facebook's

TOS said it owned user generated content even after the user disables their account. Later it read something like this "You hereby grant Facebook an irrevocable, perpetual, non-exclusive, transferable, fully paid, worldwide license (with the right to sublicense) to (a) use, copy, publish, stream, store, retain, publicly perform or display, transmit, scan, reformat, modify, edit, frame, translate, excerpt, adapt, create derivative works and distribute

(through multiple tiers), any User Content you (i) Post on". Or in plain English, "Anything you upload can forever be used by Facebook for whatever reason, no matter what". Following the strong reactions from users TOS was of course altered later.

Through the EULA you get to know of all such possible pitfalls. You need to know if the software you're about to install or the service you're signing up for, displays pop-up ads, transmits personally identifiable information, uses unique identifiers to track you, whether there is a time sensitive expiry, does the software automatically update itself via the internet or whether certain features disable suddenly.

Coming to the flip side of this coin, do the software makers accept damage liability? When you have got yourself software that is badly coded and results in data loss, you should be able to pin damages on the software providers. However, in defining the manufacturer's liability, many EULAs absolve them from taking any responsibility for damage. All EULAs have one thing in common, you have to accept the terms or relinquish the right to use the software. Still, many EULAs get challenged, and at times violations on the part of the vendor can also be brought out. Take the case in point of Amazon's Kindle ebook reader device. The device lets you buy electronic copies of books that you can keep on your device. But a while back due to some copyright issues Amazon retracted copies of George Orwell's 1984 from users' devices. Users had no idea that such kind of functionality was even built into the software and device. Apparently, under the Use of Digital Content section, its EULA had clearly mentioned that Amazon had the final say on the right to keep a permanent copy of any digital content on the device. Prima facie this seems like a breach of contract, doesn't it? Bottom line is — be an alert user and know what you're getting into, and for the last time — read the fine print — please — you may thank us later! **d**